Civilian Conflicts of Maritime South Asia: A Need for Dynamic Outlook of Maritime Security of Indian Ocean

M Prithiviraj

Department of International Relations and Politics

School of Global Studies

Central University of Kerala

Abstract

India`s gameplay in the big power politics of Indo-Pacific looks promising. Sri Lanka, Maldives, Bangladesh are carefully balanced from Chinese interplay and India`s position in Indian Ocean has always in front seat. But evolving areas of maritime security outside the ambit of traditional external players are compromised. Security issues in maritime aspect evolved beyond traditional state centric issues. Transboundary fishers issues of India, Sri Lanka, Pakistan, Bangladesh is demolishing the South Asian unity narrative, drug and weapon cartel still sail Scot free. This paper attempts to look into the non-traditional security aspects especially the civilian conflicts between India`s neighbors in Indian waters and how its affects the overall security architecture of Indian Ocean. This paper also stresses upon the effective solutions on combating the civilian issues effectively.

Key words:

Non-traditional security, Indian Ocean, SAARC, Costal Policing, transboundary civilian partnership.

Introduction:

South Asia which covers 3% of total land surface of earth is the home for 25% of the total world population. Boundaries of South Asian nations are the latest product of the colonial withdrawal which has not even crossed 100 years. The way how boundaries were demarcated also leave many fault lines, leaving a mix up of demography. Many states of India shares their

culture with the neighboring countries than states of own country. Though the leadership, political decision makers, bureaucrats have awareness of international law and boundary, the people who live by nearby borders are not used to it. Most of the current generations great grand parents would have freely roamed around the places which are now fenced and barbed.

It will take more time for the local population to understand the borders , since most decisions are taken in leadership level where voice of local people are not represented. People who live by borders are forced to keep one leg at their nationalist ideas of recognizing that their nations ends at a certain point also not able to give up the land and waters which their own family members navigated without any tensions. The contradiction of international law with local customs really makes their day to day lives harder than regular.

This border conflict has paved for contemporary issues like fishers arrest, migration issues, transboundary crimes, which are illegal as per international law. Especially in South Asia lack of regional grouping mechanism, failure of SAARC makes the process even more difficult. who lives in the borders.

Since these conflicts are low level conflicts and are smaller in magnitude, the conventional armies, navies which are tasked for the bigger role of protection of overall external sovereignty and tackle traditional threats. Sadly, policing in South Asian countries also have an inward look. Border policing is an expensive and technical affair which other South Asian states than India is finding difficult to master at. .

Lack of cooperation among civil society across nations, due to the political rivalry at national politics level aggravates the situation. India being the core of South Asian geopolitics is paying a hefty price dur to non-cooperation from its neighbors, especially Pakistan. These conflicts are dynamic, unique and multidimensional in nature. Expecting conventional armies to resolve the low level civilian issues will de stabilize the purpose and morale of the forces. Rather for a civilian issue, people centric cooperation becomes important. But, South Asian political rivalry and power struggle lacks a mechanism to build a dialogue process. Track II diplomacy is still only focusing on bigger political issues which is too heavy for them to handle instead of local issues which they can try resolving. BY focusing on people to people relations building, creating platforms where stake holders have space to discuss their opinions. These civilian issues can be addressed. Yet an un-conventional way of approach is required.

Transboundary fishers issue:

Indian Ocean is the home for exotic flora and fauna, where huge population is dependent on the high seas for survival. FAO says that nearly 50 million people in Asia are dependent on fishery activities. In India there are about 28 million fishers community present in India alone. There are 17 million fishers in Bangladesh and half a million fishers from Pakistan. Island nations like Sri Lanka, Maldives their big stake in its economy comes from fishing activities. Not only restricted to South Asia fishers all the way from Japan, South Korea and China engages in deep sea fishing in the Indian Ocean. This competitive culture in Indian Ocean for fishery activities has inevitably led to conflicts in the water. Fishers conflict ha a historical relevance where multiple kingdoms engaged in wars to control the seas however in the modern era the conflicts have taken a new shape.

Since decolonization there were issues in maritime demarcation of South Asian countries. The maritime boundary between India and Bangladesh was demarcated only in 2014. Similarly the Katchatheevu issue is still a flaring point between India and Sri Lanka. With the Sir Creek issues the India-Pakistan maritime border is not yet fully demarcated. This issues in demarcation leaves the fishers in confusion leading to conflicts often. Most cases it is the fishers between the 2 different countries ending up in conflicting with each other sometimes it also ends in violent confrontation. Fisher communities has to adjust with water current patterns, find the high catchment areas which constantly changes. This sometimes falls in fault lines of maritime borders leading to a violation of sovereignty. However no threats poised it is always seen as a threat to national security.

Indian Parliament has stated that there are 211 Indian fishers in Pakistan jails in 2024. Out of which 2 fisherman died without knowing the actual cause. Report also says 2639 fishers have been repatriated to India Since 2014. In last 10 years 24 fishers died in Pakistani report says RTI report. Also 86 Pakistani fishers are in Indian jails. On every 1st of January and July, India and Pakistani government exchanges fishers who were taken in custody for illegal fishing. Underscoring it's a long term issue, yet the governments have not created a permanent solution.

Fishers issue is the long standing and most conflictual part in India and Sri Lanka relation. Most fishers who involve in the conflict are fishers from Tamil Nadu and from the Sril Lankan side fishers from North and North East who also happens to be Tamils. The long standing issues is concerned with the fishing techniques as India is accused of using Trawlers and Sri Lanka is accused of creating artificial disruptions in seas. A submission was made in Rajya Sabha that almost 245 Indian fishers are killed by the Sri Lankan navy. A navy using arms on neighboring

country`s civilians is a potential cause to go out on an all out war yet this confrontation is still not highlighted. The issue mainly revolves around Katchatheevu a small Islet between the Palk Strait. The Island has no habitation and used by both the fishers for drying their net. However in 1974 Indira Gandhi visited Sri Lanka, Katchatheevu was ceded to Sri Lanka. It formally happened through an act of parliament however it was during the emergency time. The land inherently belong to the princely state, the Raja of Ramnad, after Independence which became a legitimate Indian territory. However voice of locals were not heard which is the main reason issues which is happening till now.

In 2024 alone 535 Indian fishers were arrested and their properties were seized. They had to pay a hefty price for their release as well. This numbers have doubled than previous years. Fishers who were arrested goes through human rights violation and their dignity is affected. A joint working group on fishers issue has been set up in 2016 by both the government to resolve the issue. Indian fishers were also accused of using bottom trawlers which leads to environmental damages. Joint patrolling mechanism was also established to resolve the tensions. Despite efforts the conflict still flares up due to lack of cooperation among fishers communities of both the nation. No platform has been developed where the fishers can sit together and argue over the issue. This conflict damages the good reputation among the neighbors on civil society and damaging the overall South Asian cooperation.

India-Bangladesh boundaries which was demarcated only in 2014 is another region of fishers conflict in Bay of Bengal. MEA report says 95 Indian fishers are under the custody of Bangladesh for illegal fishing and 90 Bangladesh fishers will be released by India in 2024 as part the exchange. Despite this the skirmishes also exist between Indian and Maldivian fishers and Sri Lankan and Maldivian fishers.

While these South Asian countries are fighting over each ither with lack of cooperation the East Asian countries are slowly exploiting the fishery of Indian Ocea with their advanced deep sea fishing capabilities. South Asian economies are not endowed with technological and financial feasibility of countries like Japan, China and South Korea. Fishermen from far east uses their deep sea fishing facility with bigger cold storage facilities.

Un regulated fishing practices with lack of enforcing mechanism and absence of civilian partnership has left the Indian Ocean an unsafe and risky place for people involved in fishing. Though the naval capabilities of South Asian countries are enhancing they can be effectively used vis a vis traditional state centric conflict. These smaller conflicts among civilians cannot

be effectively mitigated by the naval forces. Rather establishing a strong costal policing and efficient coast guard is important. Yet the permanent solution is always political nature. Until diplomacy is used to cool down the aggression on illegal fishing and imparting maritime domain awareness for the people more innocent civilians will become victim for simply doing their job.

South Asian migration crisis

Creation of India and Pakistan had led to one of the worst migration crisis ever in the history. Since then the South Asian countries are facing persistent migration issues. The purpose for the migration is multi dimensional in South Asia. It includes security and persecution threat faced by Rohingya`s in Mayanmar leading to mass migration to India and Bangladesh. During Sri Lankan civil war lakhs of people migrated to Southern part of India fearing persecution and genocide. The economic factor include people illegally move from their home country to neighboring in search of better opportunities. Illegal migrants from Bangladesh has entered into Indian labor market in mass number and they have deeply penetrated to multiple parts of India. Similarly issues exist in Pakistan as well where mass number of people enters into Indian territory with a motive of de stabilizing law and order in India, especially it had led stark rise of militant activities in India. Decades long civil war in Afghanistan has led to a mass migration issue in Pakitan where Pakistan already suffering from economic crisis this migration has even affected the Pakistan`s economy. The cultural reasons behind migration South India is many neighboring countries follow similar cultures. Tamil Nadu has cultural connect with Sri Lanka, Punjab has cultural connect with Pakistan and West Bengal people are connected with Bangladesh. Similarly the Pashtun`s of Afghanistan also has cultural ties with Western province of Pakistan. This cultural connect has led to movement of people across the region illegally leading demographic change.

Approximately 40,000 Rohingya`s entered into India, without a legal status. They are settled over the slums of Delhi, Jammu, Nuh and they have reached even Southern part of India, Hyderabad. Most of these refugees are un documented. As of 2024, total Rohingya`s in Bangladesh are estimated to 1 million. They are settled over the Southern parts of Bangladesh, especially in Cox Bazar. Cox Bazar is the home for the world`s largest UN administered refugee camp, Kutupalong refugee camp where over 8,00,000 refugees live. The civil war in Mayanmar which is technically Southeast Asia has led to a serious migration issue for India and Pakistan.

While Bangladesh is suffering with migration issue, it is also home for one of the largest migration living in another country. One of the main idea behind India intervening to creation of Bangladesh is the prevention of mass illegal migration in the 1971. However the migration has not stopped even since the formation of Bangladesh. As per home ministry of India`s report accounted by BBC in 2004 that over 12 million illegal Bangladeshi`s are present in India. According to some scholars the main purpose of India coming up the citizenship amendment and act and National citizenship registry is to control the illegal migration from Bangladesh. In 2016, the then home minister of India Kiran Rijiju said the numbers has rose up to 20 million. However only 15,000 Bangladeshi`s were given Indian citizenship until 2015. Rest of all the numbers are illegal. This migration issue has led to a serious security and economic threat to India. Since the military coup and expulsion of Bangladesh president Sheik Hasina, it has led to new series of migration crisis since late 2024. Thousands of Bangladeshi`s are waiting at the borders of the India for illegal entry and BSF of India is tasked with a huge work of prevention illegal entry of these people. Northeastern states are worst affected because of this migration issue. These states are already deprived and this influx has created a new range of economic issues. According to 2011 census there are over 0.7 million Illegal immigrants from Pakistan in India.

The civil war in Sri Lanka from 1987-2009 also led to huge migration crisis in the Southern part of the country. The Tamils who faced genocide threat left their home left and fled to India, especially to the state of Tamil Nadu which shares same language and culture. As of 2023 March there are of nearly 53,000 migrants from Sri Lanka live in 104 camps across Tamil Nadu. More than 70% of these migrants lives in the special camps. These special camps were created to accommodate people who left the country and are asked to go back to their home after the end of civil war. However many migrants still chose to stay in the camps even after the civil war. There are nearly 33,000 migrants as of March 2023 lives outside these camps. According to Government report of 2020 nearly 4,00,00- Indian origin Tamils who left India during colonial time are to repatriated and granted Indian citizenship. The lives of people who live in the camps are at grim situation. Due to lack of documentation their access to education and jobs are affected. However the lives these migrants are compared to the other migrants in various South Asian migration crisis.

Migration crisis is a serious threat for regional stability in various aspects. Firstly being directly associated with the national security of the country. Any illegal migrant is a potential threat for the sovereignty of the nation. When an individual doesn’t belong to a specific nation and does

not have a statehood living in a country that individual can be used for any terror attacks against a nation. The national investigation agency of India often conducts multiple crackdowns to arrect illegal migrants. When these illegal migrants are approached by terror outfits these migrants can be used for terror activities against India. Intelligence networks doubts that the Rohingya`s in India can be misled to use for terror activities against India. Second aspect being the economic reason. India already facing un employment issues and economic stress, the migration issue may fuel the economic crisis. Most important issue being clashes between citizens and the migrants. This clashes from state perspective should be understood as attack against the citizens by foreigners. Such incidents will demolish the cooperation and reputation among countries leading to multidimensional conflicts.

Illegal trade and drug trafficking

Indian Ocean has rich legacy of trading since centuries. Romanian empires traded with kingdoms in South Asia and South East, East Asia. Major trade route for these trades were the Indian Ocean. The traded commodities range from daily use clothes to rare precious stones. But there is also a trade that is happening in recent times which are illegal where different goods are traded through ocean which are not permitted. Drug trafficking and arms trade pose a huge security concern in Indian Ocean.

Indian Ocean has unfortunately became the major route to transfer narcotic drugs all over the world. In the 21st century there are 2 important regions in the world where most of these narcotic substances were produced. The golden triangle and the golden crescent are the major drug producing regions in the world. Golden crescent region includes the vast arid mountainous regions of Afghanistan, Pakistan and Iran. These area are mostly off guarded and majorly under the control of terrorists. The Talibans played a crucial role in drugs trade where they sold high quality drugs to procure more arms. This golden crescent region is currently the highest drug producing region in the world.

The golden triangle region are the lush tropical rainforests of Myanmar, Thailand and Laos. The tropical rain forests are conducive to cultivate poppy plants which are the raw materials of opium. This has also become an important region in production of synthetic drugs which causes catastrophic effects in human lives. Indian Ocean is the best route to connect these Golden Triangle and Golden Crescent making the Indian Ocean as the prime route of drug trafficking.

Drugs from these region are taken to all over the world mainly through Indian Ocean. The Golden Crescent connects to the Eastern coast of Africa and Golden Triangle is connected to Mediterranean via Malacca strait and Gulf of Aden. It is very challenging to restrict the drug movement since it is hard to find the substances which are mixed among other commodities being in transit. The Southern sea route on the Indian Ocean connecting Yemen and Somalia is famously called as the smack highway due to amount of drugs being trafficked in this route. Drugs are taken to Northern America, Europe through Indian Ocean via many channels and multiple un recognized routes. This trafficking is done an organized manner with lots of resources making very hard to prevent drug trafficking.

India is one of the worst affected countries due to drug trafficking in Indian Ocean. It is ruining the social order and social wellness of people especially among youths. Youth population are the asset of our nation's future economic development and it is crucial to provide them a good drug free society for them to grow in their full potential. But this drugs from Indian Ocean is creating a rift in India`s social wellness. Drug trafficking in Indian Ocean has created a global security concern because of the value of money that is associated and wide raging social impacts developed due to consumption of narcotic substances.

Illegal arms trade is the next security concern that is haunting the Indian Ocean. Illegal arms flows all the way from China, Korea, Russia to West Asian Countries like Pakistan, Afghanistan and also into East and Central Africa. Indian Ocean connects multiple points where weapons are traded illegally. Biggest concern is that these arms were mainly traded for terrorists and extremists. Indian Ocean countries are on high alert all the time due to terrorism and this illegal arms traded is adding more fuel to the burn.

Apart from these, a lot of marine species are also traded illegally from the Indian Ocean. It includes Sea Urchins, Sea Cucumbers, Exotic Turtle species. These marine lives are traded illegally for its medicinal purposes which is creating a imbalance in the food web of the Indian Ocean. In January 2025 alone 95 Indian fishers in 6 boats were arrested by the Bangladesh coast guards. In December 2024 78 Bangladesh fishers in 2 trawlers were arrested by India for illegal fishing. Despite the demarcation of borders the conflict still continues to exist. India is facing fisher issues with all 3 of its maritime neighbors.

Need for regional mechanism and civilian partnership

Since these civilians issue involve a regional aspects on certain issues leading to civilian conflicts in the region a comprehensive approach is required. To compare with ASEAN where

all 10 members of its grouping are maritime countries and share common waters yet they have a successful record of maintain peace among civilians. Regarding fishers issues, which is geographically more complicated than South Asia, ASEAN has developed ASEAN fisheries consultative forum AFCF to resolve the fishers issue. They have also released a joint guideline on fisheries practices in the region and created sustainably responsible technologies. Such mechanism doesn't exist in South Asia leading to un regulated fishing and cross boundary fishing which leads to de stabilization of harmony in the ocean. In migration crisis, ASEAN has created a forum of migration regulation and a guidelines for migrant transfers. ASEAN has established an ASEAN way of migration handling which has got international attention. Similarly cooperation among South Asia is a must factor to create a forum and consensus to regulate the regional migration and prevent further migration stress. ASEAN has laid out some of the best ways in handling civilian issues of its regions which should be adopted by SAARC as well.

Conclusion

The human centric security approach has taken over the state centric security approach for better functioning of International security. While human centric approach of international institutions are prioritized South Asia must also consider a human centric approach on regional cooperation. This approach will be more human centric, and human protective in nature. By taking such approach, civilian conflicts can be mitigated in an effective manner. South Asian countries have so far only established state centric institutions by political leadership to address the traditional issues. On conflicts between the citizens of region there is no redressal mechanism to resolve the conflicts. A civilian approachable, issue specific, groupings, forums, mechanism, dialogues has to emerge to counter these civilian issues.

Lack of cooperation among civil societies need to bridged. Despite cultural affinity and confluence due to the colonial blunder the people are left divided with hate. International law paves way formation of interstate civilian partnership groupings. UN also considers as an effective way of conflict prevention. Issue based civil societies of South Asian countries should come together for a specific cause and should act as a pressure group to develop a regional mechanism. Collaborative efforts among people and government is the best way to mitigate the civilian conflicts.

South Asia is best gifted with abundant natural resources and human capital is still lacking in global coemption. Lack of cooperation and mistrust is the main factor. When a mechanism like

ASEAN is existing it will create a regional togetherness character and paves way to avoid people among countries ending in conflict with each other. Trust and partnership level between the government resonates the unity of citizens of countries. Developing a regional unity narrative and creating enough human centric issue based grouping mechanism can only ensure a safe, open, useful, developing Indian Ocean which will be equitably beneficial for whole of South Asia.

References :

1) MEA. 20 December 2024. https://www.mea.gov.in/lok-sabha.htm?dtl/38843/QUESTION_NO_4229_INDIAN_FISHERMEN_DETAINED_IN_PAKISTAN_JAILS#:~:text=Out%20of%20the%20209%20fishermen,and%20security%20of%20Indian%20fishermen.
2) MEA. 29 December 2024 https://www.mea.gov.in/lok-sabha.htm?dtl/38639/QUESTION+NO+736+ATTACK+ON+INDIAN+FISHERMEN+BY+SRI+LANKAN+NAVY
3) Observer Research Foundation. (n.d.). *Finding solutions to fishermen transgressions in the India-Bangladesh maritime space*. ORF. Retrieved February 7, 2025, from https://www.orfonline.org/research/finding-solutions-to-fishermen-transgressions-in-the-india-bangladesh-maritime-space
4) United Nations. (2019, June 25). *Security Council press statement on Joint Comprehensive Plan of Action on Iran nuclear issue*. UN Press. Retrieved from https://press.un.org/en/2019/sc13822.doc.htm
5) High Commission of India, Colombo. (n.d.). *6th meeting of the Joint Working Group on Fisheries*. Retrieved February 7, 2025, from https://www.hcicolombo.gov.in/section/press-releases/6th-meeting-of-the-joint-working-group-on-fisheries/
6) Pulitzer Center. (n.d.). *The fight to release detained fishermen in India and Pakistan*. Retrieved February 7, 2025, from https://pulitzercenter.org/stories/fight-release-detained-fishermen-india-and-pakistan
7) Ministry of External Affairs, India. (n.d.). *Question no. 736: Attack on Indian fishermen by Sri Lankan Navy*. Retrieved February 7, 2025, from https://www.mea.gov.in/lok-sabha.htm?dtl/38639/QUESTION+NO+736+ATTACK+ON+INDIAN+FISHERMEN+BY+SRI+LANKAN+NAVY
8) Shankari's Parliament. (n.d.). *India-Sri Lanka fishermen issue*. Retrieved February 7, 2025, from https://www.shankariasparliament.com/article/india-sri-lanka-fishermen-issue
9) Al Jazeera. (2025, January 1). *'Treat us like humans': Fishing wars trap Indians in Sri Lankan waters*. Retrieved from https://www.aljazeera.com/features/2025/1/1/treat-us-like-humans-fishing-wars-trap-indians-in-sri-lankan-waters